



OREGON YOUTH AUTHORITY
Policy Statement
Part III – Youth Services (Community)



Subject:

Juvenile Parole/Probation Agreement

Section – Policy Number:

D: Case Management – 1.1

Supersedes:

**III-D-1.1 (6/21)
III-D-1.1 (12/19)
III-D-1.1 (1/07)
III-E-1.4 (12/02)**

Effective Date:

04/26/2024

Date of Last Review:

04/26/2026

Related Standards and References:

- [ORS 419C.495 When commitment to a youth correctional facility authorized](#)
- [ORS 420.045 Parole; discharge; revocation of parole](#)
- [OAR 416-410](#) Close-custody Population
- [OYA policy](#): III-B-2.0 New Commitments to OYA Legal Custody
III-D-2.0 Parole Revocation
- [OYA forms](#): YA 3001 Juvenile Parole/Probation Agreement

Related Procedures:

- Local field office protocol (optional)

Policy Owner:

Community Services Assistant
Director

Approved:


Joseph O'Leary, Director

I. PURPOSE:

This policy delineates the development and use of a formal Juvenile Parole/Probation Agreement between a youth and the assigned OYA juvenile parole/probation officer (JPPO). The agreement defines conditions of community supervision.

II. POLICY DEFINITIONS:

PSR: Public Safety Reserve - A number of beds in youth correction facilities that are reserved for youth who have been adjudicated for committing a specified crime type listed in OAR 416-410-0020 Allocation of Close-custody Beds.

III. POLICY:

OYA strives to protect the public and reduce crime by holding youth accountable and providing opportunity for reformation in a safe environment. OYA supports youth in making positive choices and progressing to lead productive, crime-free lives. OYA has identified diversity, equity and inclusion as an agency priority and initiative, with a goal to build a respectful, diverse, equitable and inclusive environment for youth and staff that is free from harassment, discrimination and

bias. Data shows youth of color and LGBTQ+ youth are disproportionately represented in the juvenile justice system. While OYA is only one part of that system, we play a critical role in addressing the historical and systemic inequities it perpetuates. Best practices support the use of parole and probation agreements that focus on specific needs of youth, use of a gender and culturally responsive approach, with intentional focus to reduce bias and ensure equitable treatment of youth.

When a youth is placed in the community, the Juvenile Parole/Probation Agreement (YA 3001) may be used to define the parameters of the youth's community behavior while considering public safety, outline the resources to support the youth, and assist the youth in making positive choices.

- **Parole:** The agreement must be developed when a youth is in the process of leaving a close-custody facility and moving into a community placement on parole. The agreement is also used in the administrative process of revoking parole.
- **Probation:** The agreement may be developed when the court orders a youth into OYA legal custody during probation, and may be used to document probation conditions ordered by the court. For probation cases, conditions of supervision may be delineated in the commitment order.

IV. GENERAL STANDARDS:

A. Development of the Juvenile Parole/Probation Agreement

1. JPPOs must develop the parole/probation agreement while considering the risk and needs of the youth, victim and community input, culturally relevant services and supports, and potential for bias.
2. When providing a copy of the agreement, JPPOs must make reasonable efforts to provide a copy of the parole/probation agreement in the primary language(s) of the youth and parent/guardian.

3. Probation Agreement

The agreement may be developed or reviewed by the court, stipulating conditions the youth must follow for placement in the community.

- a) The court may or may not incorporate the agreement into the commitment order. If it is incorporated, the agreement is authorized for probation cases. If not, the court order will list the conditions of probation.
- b) In each case, the agreement clearly defines the expected behavior(s) and obligation(s) of the youth.

- c) The JPPO must ensure that the parent/guardian receives a copy of the document that contains the conditions of probation (e.g., court order or probation agreement), in their primary language when possible. The JPPO must review the agreement or order, answer any questions, clarify expectations, and confirm understanding with the parent/guardian prior to the youth residing or having overnight home visits in the parent/guardian home.

4. Parole Agreement

Prior to parole, staff must explain and confirm understanding of the expectations and conditions of the agreement with the youth and obtain their signature on the agreement. The signed agreement allows the youth to leave the facility and be placed in the community with the approval of the Parole Review Committee, Agency Case Review (if applicable), and by order of the superintendent/camp director.

- a) Field supervisors must approve the parole conditions of youth who were adjudicated for PSR crimes.
- b) Release to substitute care placement: JPPOs must review the expectations in the parole agreement with the youth and program staff upon intake.
 - (1) The JPPO must ensure that the parent/guardian receives a copy of the parole agreement in their primary language, when possible, before the youth's home visit.
 - (2) The JPPO must review the agreement, answer any questions, clarify expectations, and confirm understanding with the parent/guardian.
- c) Release to parent/guardian placement: The JPPO must meet with the youth and the supervising parent/guardian to explain the expectations and conditions of the parole agreement, answer any questions, and confirm understanding with the parent/guardian and youth.

B. Modification of the Juvenile Parole/Probation Agreement

- 1. Agreements may be modified at the discretion of the JPPO, based on community safety concerns, the youth's emerging needs, or progress in case plan goals.
- 2. In instances when a youth is moving or is in transition from one community placement to another, the JPPO must develop a new agreement.

C. Routing of the Juvenile Parole/Probation Agreement

1. The original and any translated versions must be placed in the youth's field case file.
2. Copies may be given to the appropriate juvenile department.

V. LOCAL OPERATING PROTOCOL REQUIRED: NO

Completing the OYA Juvenile Parole/Probation Agreement for OYA probation cases is optional. Local offices may establish protocols for the use of this document.